

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARVEY CHAPMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE EFRAIN
MORALES, Tax No. 947273, DETECTIVE DAVID
DESIMONE, Shield No. 11704, SERGEANT CRAIG
ROACH, Tax No. 942445, DETECTIVE DMAINE
FREELAND, Tax No. 941208, DETECTIVE THOMAS
WRIGHT, DETECTIVE MELVIN CORDERO,
DETECTIVE ANGEL THEVENIN, DETECTIVE JAMES
SANTANA, DETECTIVE KATHLEEN GRANT, and
POLICE OFFICERS JOHN DOES #s 1-4 (names and
numbers of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 5, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
DETECTIVE EFRAIN MORALES, Tax No. 947273, Narcotics Borough Brooklyn South
DETECTIVE DAVID DESIMONE, Shield No. 11704, Narcotics Borough Brooklyn South
SERGEANT CRAIG ROACH, Tax No. 942445, Narcotics Borough Brooklyn South
DETECTIVE DMAINE FREELAND, Tax No. 941208, Narcotics Borough Brooklyn South
DETECTIVE THOMAS WRIGHT, Narcotics Borough Brooklyn South
DETECTIVE MELVIN CORDERO, Narcotics Borough Brooklyn South
DETECTIVE ANGEL THEVENIN, Narcotics Borough Brooklyn South
DETECTIVE JAMES SANTANA, Narcotics Borough Brooklyn South
DETECTIVE KATHLEEN GRANT, Narcotics Borough Brooklyn South

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARVEY CHAPMAN,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DETECTIVE EFRAIN
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ROACH, Tax No. 942445, DETECTIVE DMAINE
FREELAND, Tax No. 941208, DETECTIVE THOMAS
WRIGHT, DETECTIVE MELVIN CORDERO,
DETECTIVE ANGEL THEVENIN, DETECTIVE JAMES
SANTANA, DETECTIVE KATHLEEN GRANT, and
POLICE OFFICERS JOHN DOES #s 1-4 (names and
numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff MARVEY CHAPMAN, by her attorneys, Jacobs & Hazan, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that she was, unlawfully questioned, frisked, searched, falsely arrested, and denied the right to due process/ the right to a fair trial, by the defendants. Plaintiff alleges that on February 24, 2018, at approximately 1:00 p.m., plaintiff was lawfully present, visiting a friend inside of the friend's apartment located at 1656 Saint Johns Place, Apt. 1A, Brooklyn, NY, when defendants executed a search warrant at that location, entered the apartment, unlawfully pointed their weapons at plaintiff, unlawfully searched plaintiff, unlawfully handcuffed plaintiff, and falsely arrested/imprisoned plaintiff, without probable cause or legal justification. Defendants did not recover any illegal drugs, weapons, or contraband from plaintiff's person or from plaintiff's possession, custody, dominion, or control. Additionally, at no time relevant herein did plaintiff violate the law, nor did the defendants possess a reasonable objective factual basis to believe plaintiff violated the law in any way. Nevertheless, defendants falsely arrested plaintiff without probable cause or any legal justification and transported

plaintiff to the 77th Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. The defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete information about their basis for arresting plaintiff and charging her with crimes. Defendants denied plaintiff the right to due process/ right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause by making false allegations against plaintiff on the arrest paperwork they filled out related to plaintiff's arrest and falsifying evidence that was provided and communicated to the Kings County District Attorney's Office. Thereafter, plaintiff was transported to Brooklyn Central Booking whereat her detention continued until February 25, 2018, at approximately 1:00 p.m., when plaintiff was arraigned in Brooklyn Criminal Court and charged with crimes she did not commit and for which defendants lacked probable cause to accuse plaintiff of committing. Plaintiff was arraigned in Brooklyn Criminal Court and was released from arraignment on her own recognizance. Thereafter, plaintiff was required to appear in Court on approximately 10 additional dates before all charges against plaintiff were dismissed and sealed on December 4, 2018. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully questioned, frisked, searched, confined, falsely arrested, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York. Plaintiff also suffered loss of employment and lost income as a result of the false arrest and denial of plaintiff's right to due process.

PARTIES

2. Plaintiff MARVEY CHAPMAN is a resident of the state of New York.
3. Defendant DETECTIVE EFRAIN MORALES, Tax No. 947273, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE EFRAIN MORALES, Tax No. 947273, was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.
5. Defendant DETECTIVE EFRAIN MORALES, Tax No. 947273, is being sued in his individual and official capacity.
6. Defendant DETECTIVE DAVID DESIMONE, Shield No. 11704, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant DETECTIVE DAVID DESIMONE, Shield No. 11704, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.
8. Defendant DETECTIVE DAVID DESIMONE, Shield No. 11704, is being sued in his individual and official capacity.

9. Defendant SERGEANT CRAIG ROACH, Tax No. 942445, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT CRAIG ROACH, Tax No. 942445, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

11. Defendant SERGEANT CRAIG ROACH, Tax No. 942445, is being sued in his individual and official capacity.

12. Defendant DETECTIVE DMAINE FREELAND, Tax No. 941208, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE DMAINE FREELAND, Tax No. 941208, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

14. Defendant DETECTIVE DMAINE FREELAND, Tax No. 941208, is being sued in his individual and official capacity.

15. Defendant DETECTIVE THOMAS WRIGHT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE THOMAS WRIGHT, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

17. Defendant DETECTIVE THOMAS WRIGHT, is being sued in his individual and official capacity

18. Defendant DETECTIVE MELVIN CORDERO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant DETECTIVE MELVIN CORDERO, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

20. Defendant DETECTIVE MELVIN CORDERO, is being sued in his individual and official capacity.

21. Defendant DETECTIVE ANGEL THEVENIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant DETECTIVE ANGEL THEVENIN, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

23. Defendant DETECTIVE ANGEL THEVENIN, is being sued in his individual and official capacity.

24. Defendant DETECTIVE JAMES SANTANA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant DETECTIVE JAMES SANTANA, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

26. Defendant DETECTIVE JAMES SANTANA, is being sued in his individual and official capacity.

27. Defendant DETECTIVE KATHLEEN GRANT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. Defendant DETECTIVE KATHLEEN GRANT, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

29. Defendant DETECTIVE KATHLEEN GRANT, is being sued in his individual and official capacity.

30. New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

31. Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

32. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

33. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

34. Plaintiff in furtherance of her causes of action brought pursuant to New York State law timely filed a Notice of Claim against the CITY OF NEW YORK and also attended a 50-h Hearing on October 10, 2019 in compliance with the Municipal Law Section 50.

35. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

36. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

37. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

38. By way of background, defendants allege that prior to February 24, 2018 they used a Confidential Informant to purchase crack from the apartment located at 1656 Saint Johns Place, Apt. 1A, Brooklyn, NY under defendants' supervision on multiple dates.

39. Defendants allege that on each of the occasions when the Confidential Informant purchased crack from 1656 Saint Johns Place, Apt. 1A, Brooklyn under the supervision of defendants, the Confidential Informant purchased the crack from the tenant of the apartment named Carlile Reid.

40. Plaintiff was not present at 1656 Saint Johns Place, Apt. 1A, Brooklyn, New York, on any of the occasions when the Confidential Informant purchased crack from the apartment under the supervision of defendants,

41. Prior to February 24, 2018 defendants did not have any reason to believe plaintiff had any involvement with illegal drug activity at 1656 Saint Johns Place, Apt. 1A, Brooklyn, New York.

42. At no time relevant herein did plaintiff reside at 1656 Saint Johns Place, Apt. 1A, Brooklyn, New York, nor did defendants believe plaintiff resided at that location.

43. Defendants obtained a no-knock search warrant to search 1656 Saint Johns Place, Apt. 1A, Brooklyn, New York based upon defendants' representations to the Court that they supervised a Confidential Informant purchase crack from Carlile Reid at that location on multiple occasions.

44. Carlile Reid was the named "target" on the no-knock search warrant for 1656 Saint Johns Place, Apt. 1A, Brooklyn, New York.

45. On February 24, 2018, at approximately 1:00 p.m., plaintiff was lawfully present as an invited guest inside of the apartment located at 1656 Saint Johns Place, Apt. 1A, Brooklyn, NY, when defendants executed the search warrant for that location, entered the apartment, unlawfully pointed their weapons at plaintiff and the other occupants, unlawfully searched plaintiff, unlawfully handcuffed plaintiff, and falsely arrested/imprisoned plaintiff, without probable cause or legal justification.

46. Defendants allege they recovered a few twists of crack and a pipe from the possession of Carlile Reid who was allegedly in the bathroom when the defendants raided the apartment.

47. Defendants did not recover any illegal drugs, weapons or contraband from the possession, custody, dominion, or control of plaintiff at any time relevant herein.

48. Defendants arrested everyone that was present in the apartment located at 1656 Saint Johns Place, Apt. 1A, Brooklyn, NY for allegedly possessing the crack that defendants recovered from Carlile Reid's person, the "target" of the search warrant.

49. Defendants intentionally and falsely alleged that plaintiff possessed the illegal drugs allegedly recovered from Carlile Reid's person, even though plaintiff was located in a different room from Carlile Reid when the drugs and/or pipe were allegedly recovered by defendants from Carlile Reid, and the officers possessed no factual basis to believe plaintiff had possession, dominion or control over the illegal drugs and contraband allegedly recovered from Carlile Reid by the defendants.

50. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

51. Defendants unlawfully handcuffed plaintiff, and falsely arrested/imprisoned plaintiff, without probable cause or legal justification.

52. Defendants did not recover any illegal drugs, weapons, or contraband from plaintiff's person or from plaintiff's possession, custody, dominion, or control.

53. Additionally, at no time relevant herein did plaintiff violate the law, nor did the defendants possess a reasonable objective factual basis to believe plaintiff violated the law in any way.

54. Nevertheless, defendants falsely arrested plaintiff without probable cause or any legal justification.

55. Defendants transported plaintiff to the 77th Precinct against her will whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

56. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

57. The defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete information/ evidence about their basis for arresting plaintiff and charging her with crimes.

58. Defendants denied plaintiff the right to due process/ right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause by making false allegations against plaintiff on the arrest paperwork they filled out related to plaintiff's arrest and falsifying evidence that was provided and communicated to the Kings County District Attorney's Office.

59. Plaintiff was transported to Brooklyn Central Booking whereat the unlawful detention continued, and plaintiff was unlawfully detained for many hours in several large holding cells with many other prisoners in each cell.

60. Defendants falsely advised the Kings County District Attorney's Office that a small portion of the crack allegedly recovered from Carlile Reid's person was recovered from a location closer to where plaintiff was located when the police raided the apartment.

61. Based upon the fabricated allegations made by the defendants against plaintiff, plaintiff was arraigned in Kings County Criminal Court on February 25, 2018 at approximately 1:00 PM and falsely charged with Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03), without probable.

62. Plaintiff's detention continued until February 25, 2018, at approximately 1:00 p.m., when plaintiff was arraigned in Kings County Criminal Court and charged with crimes she did not commit and for which defendants lacked probable cause to accuse plaintiff of committing.

63. Plaintiff was arraigned in Brooklyn Criminal Court and was released from arraignment on her own recognizance.

64. Thereafter, plaintiff was required to appear in Kings County Criminal Court on approximately 10 additional dates before the charge brought against plaintiff was dismissed and sealed in its entirety on December 4, 2018.

65. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, and defendants did not possess any objective facts which suggested that plaintiff committed a crime or violated the law in any manner.

66. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

67. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

68. Plaintiff was fired from her job because she missed work when she was detained in police custody, and plaintiff was unable to obtain new employment until after the

criminal prosecution concluded. Consequently, plaintiff lost a significant amount of income during that time period.

69. The unlawful question, frisk, search, false arrest and false imprisonment, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

70. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, questioned, frisked, searched, falsely arrested, falsely imprisoned, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Seizure, Question, and Frisk

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The illegal approach, pursuit, seizure, questioning, and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

80. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

87. Defendants lacked probable cause to search plaintiff.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment, and Fourteenth Amendment Rights

Denial of Right to Fair Trial

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants, individually and collectively, manufactured false evidence and forwarded this false evidence to and/or withheld evidence from prosecutors in the Kings County District Attorney's Office.

94. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

95. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

96. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments to the Constitution of the United States.

97. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, missed school, and deprivation of his constitutional rights.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

99. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.

100. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein.

102. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

105. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION

Negligence

107. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 106 with the same force and effect as if more fully set forth at length herein.

108. Defendants owed a duty of care to plaintiff.

109. Defendants breached that duty of care by unlawfully seizing, questioning, frisking, falsely arresting, illegally searching, and denying plaintiff her right to a fair trial..

110. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

111. All of the foregoing occurred without any fault or provocation by plaintiff.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

113. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

115. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

117. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Marvey Chapman demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 5, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 5, 2021

/s/
DAVID M. HAZAN